

25LBCV00791 25LBCV00791

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25LBCV00791 Hearing Date: August 13, 2026 Dept: S27

Moving Parties: American

Honda Motor Co., Inc.

Opposing

Parties: Wendy Loesch

Notice: OK

BACKGROUND

On December 8, 2018,

Plaintiff Wendy Loesch either leased or purchased a 2018 Honda Odyssey vehicle.

Plaintiff alleges the vehicle suffers from transmission, engine, and electrical defects. On March 13, 2025, Plaintiff filed a complaint for Statutory

Obligations, including causes of action for Violation of Civil Code section

1793.2, subd. (d), Violation of Civil Code section 1793.2, subd. (b), Violation

of Civil Code section 1793.2, subd. (a)(3), Breach of Implied Warranty of

Merchantability, and Fraudulent Inducement – Concealment. American Honda Motor Co., Inc., ((Honda) answered the complaint on June 11, 2025.

On July 16, 2025, Honda

filed a motion for evidentiary or terminating sanctions. Plaintiff filed an

opposition on July 31, 2026. No reply appears on file; any reply was due by August

6, 2026. The motion was originally reserved for January 14, 2027, and specially

advanced via ex parte order on July 27, 2026.

DISCUSSION

Applicable Law

"To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: ... (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (d) The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order rendering a judgment by default against that party." (Code Civ. Proc., § 2023.030.)

Evidence or issue sanctions may be imposed only after parties violated discovery orders compelling further responses, except in exceptional circumstances, including where there was sufficiently egregious misconduct regarding a failure to respond to discovery, or a prior discovery order would be futile. (New Albertsons, Inc. v. Sup. Ct. (2008) 168 Cal.App.4th 1403, 1428.) "The discovery statutes thus 'evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.' (Citation.) Although in extreme cases a court has the authority to order a terminating sanction as a first measure (Citations), a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective." (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) To avoid sanctions, the burden of proving that a discovery violation was not willful is on the party on whom the discovery was served. (Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250, 252- 253.)

The court hesitantly imposes issue and evidentiary sanctions, where the result leads to a potential windfall for the prevailing party and an effective "avoidance of a decision on the merits." (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1194 accord McGinty v. Superior Court (1994) 26 Cal.App.4th 204, 214 ["On balance, we conclude that it was excessive and an abuse of discretion for the trial court to impose the preclusive witness and

evidence sanction in this case ... where no real harm has been done ..., and where the punishment falls most harshly not on the supposed malefactor but on the petitioners in their ability to have their case decided on the merits”]; *Parker v. Wolters Kluwer United States, Inc.* (2007) 149 Cal.App.4th 285, 301.)

A prerequisite to the imposition of the dismissal sanction is that the party has willfully failed to comply with a court order. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280; *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487 overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.); *Young v. Rosenthal* (1989) 212 Cal.App.3d 96, 114.) Preventing parties from presenting their cases on the merits is a drastic measure; terminating sanctions should only be ordered when there has been previous noncompliance with a rule or order and it appears a less severe sanction would not be effective. (*Link v. Cater* (1998) 60 Cal.App.4th 1315, 1326; *Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191 [“Terminating sanctions are to be used sparingly because of the drastic effect of their application”].) “The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.)

Analysis

Honda moves for evidentiary or terminating sanctions on grounds that Plaintiff failed to comply with the June 18, 2026, order compelling a vehicle inspection to be completed no later than July 10, 2026. Honda contends noncompliance with the order at the time of the filing of the order.

Plaintiff

in opposition denies any denial of a vehicle inspection, and offered dates from July 27 to July 29, 2026 (all after the July 10, 2026, ordered compliance deadline). Plaintiff also represents the vehicle itself holds a “junk” status title, which Plaintiffs offered to produce to Honda. Plaintiff denies any prejudice in that Honda refused to either coordinate on said dates, or accept a copy of the junk title. An inspection can still be completed before the August 25, 2026, trial date.

Given

the representation of Plaintiff's willingness to produce the vehicle for inspection, albeit admittedly late compliance with the June 18, 2026, order of the court, nothing in the conduct supports the finding of a willful violation of the order. The imposition of terminating sanctions are not supported under the circumstances and standard of the law.

Imposition of

evidentiary sanctions also appears unnecessarily extreme. Honda first fails to articulate the actual sought after evidentiary sanction(s). Assuming the remaining sanction would be to exclude any and all vehicle information, such exclusion would lead to an effective dismissal of the action. Again, the subject delays will not support an effective terminating sanction regardless of the description of the sought after relief.

The

sanctions standard vests a judge with discretion to impose sanctions for the misuse of the discovery process. (Code Civ. Proc., § 2023.030; City of Los Angeles v. PricewaterhouseCoopers, LLP (2024) 17 Cal.5th 46, 71-74.) Sanctions exist to remedy the wrongs caused to the party seeking sanctions, but should not serve as punishment or provision of a windfall. (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 74-75.) The purpose of the statute, as any discovery under the Civil Discovery Act is "to enable a party to obtain evidence in the control of his adversary in order to further the efficient, economical disposition of cases according to right and justice on the merits." (City of Los Angeles v. PricewaterhouseCoopers, LLP, supra, 17 Cal.5th at p. 73.) Plaintiff in no way appears to seek to withhold any information.

The unexcused delays

however support the request for compensatory sanctions as a result of costs incurred. [Declaration of Paul Peterson.] (Code Civ. Proc., § 2023.030.) With trial less than two weeks before the hearing of this motion, the imposition imposed on counsel supports the imposition of monetary sanctions against Plaintiff and counsel. The motion for monetary sanctions is GRANTED. The court imposes sanctions of \$1,500 against counsel for Plaintiff Loesch, payable within 30 days.

CONCLUSION

Honda's Motion for Evidentiary, Issue,
or Terminating sanctions is DENIED. The
parties are ordered to complete the vehicle inspection within 5 days of this
order. Sanctions payable within 30 days of this order. The motion for Monetary
Sanctions is GRANTED in the amount of \$1,500 against Plaintiff's counsel, and
payable in 30 days.

Trial remains set for August 24, 2026,
with the Final Status Conference on August 21, 2026.

Moving party to give notice.